

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Record class: defendant's limited immunity reply.

Officer Rusk's Summary-Judgment Reply

Filed December 23, 2025.

The opposition confirms the dispositive divide

Ellison's response confirms that the legal result depends on which physical account governs. Rusk perceived an active twist, a forearm strike, and a movement toward duty-belt equipment. Ellison describes only pain-induced recoil and pulling. She does not dispute that close motion occurred, that Rusk issued a command to stop pulling, or that the setting included a railing and stairs.

Rusk maintains that his contemporaneous account, command, and responsive one-cycle use permit judgment. But if the Court concludes Ellison's contrary testimony creates a genuine dispute, it should not stop after saying “facts are disputed.” Qualified immunity still requires legal analysis on a defined set of assumed facts.

The opposition frames those assumptions as no strike, reach, grab, flight, or immediate danger. Rusk preserves his objection to that history while accepting it for the alternative legal argument. This separation prevents a summary-judgment assumption from becoming a credibility finding and permits a precise ruling on the scope of clearly established law.

Reply — authentic but incomplete video

The parties agree the native exports are authentic and the hand-and-belt area is not reliably visible during the decisive interval. Rusk does not invoke *Scott v. Harris* to claim a clear image blatantly contradicts Ellison. He invokes the full record, including his own perception and the audible, visible movement surrounding it.

Professor Adrian Crane's conclusion is neutral: the recording cannot prove or disprove a strike or reach. Ellison therefore cannot present the visual gap as affirmative corroboration. Her testimony remains evidence, but so does Rusk's. Vega's inability to see the hands explains why she neither confirms nor rejects his account.

The audio confirms pulling at least in the sense Ellison admits and records rapidly changing physical contact. Rusk agrees that a command does not establish every alleged act. The proper question is whether a reasonable jury could accept Ellison despite the surrounding evidence. If the Court answers yes, the same uncertainty must be kept out of the legal immunity assumptions; the Court should not blend a possible belt reach into a plaintiff-favorable branch.

Reply — the constitutional prong on alternate accounts

On Rusk's account, immediate access to police equipment justified brief pain compliance during a takedown. The device remained in contact mode, recorded one five-second cycle, and was not used again after control. That response was proportionate to the perceived danger and did not punish Ellison for distress.

On Ellison's account, the safety interest is lower. Rusk nevertheless argues officers could use some force to maintain control during noncompliance in a narrow elevated passage. The presence of a second officer and possible de-escalation alternatives do not create a least-intrusive-means requirement.

The defense recognizes that deliberate electrical pain demands justification. The dispute is whether the combination of active pulling during wrist control, location, one-cycle duration, and the need to complete a lawful protective seizure makes the response objectively reasonable even without a strike or reach. The Court should decide that bounded question rather than adopt Ellison's proposed rule that any drive stun during low-level resistance necessarily violates the Fourth Amendment.

Reply — clearly established law remains the alternative ground

Ellison relies heavily on *Armstrong v. Village of Pinehurst*. That decision involved repeated taser applications against a stationary person clinging to a post and explained that the law had not been clearly established at the 2011 event. Its later notice matters, but the factual and force differences still bear on the required particularity.

Meyers, *Smith*, and *Yates* likewise turn on their own threat, resistance, and force sequences. They establish important principles; Rusk disputes that they placed beyond debate the legality of one contact-mode cycle during hands-on resistance in a constrained welfare encounter. The Supreme Court instructs courts not to define the right at a high level of generality.

The equipment-reach version is plainly distinct from Ellison's authorities. Even on her version, reasonable officers could distinguish repeated or post-restraint tasing from a single cycle while control was still being obtained. Rusk therefore seeks qualified immunity if the Court reaches a constitutional violation on assumed facts. At minimum, the order should state both the assumed conduct and the precedent used to find fair notice.

Reply — experts, injuries, and requested ruling

North and Pike do not resolve history. North criticizes the cycle when the hypothetical excludes danger. Pike supports it when the hypothetical includes a strike and belt reach and acknowledges his rationale changes without them. Their conditional opinions illustrate materiality; they do not choose a witness.

The injuries are real but bounded: wrist abrasion, two superficial contact burns, shoulder strain, and no fracture. They establish contact and resulting harm, not why Rusk acted. Ending after one cycle and obtaining medical care remain relevant to scope even though later conduct cannot cure an unreasonable initiation.

Rusk requests judgment on objective reasonableness and qualified immunity. If factual conflict forecloses the former on his version, the Court should decide whether Ellison's particular assumed facts show a violation and whether the rule was clearly established by February 3, 2025. It should expressly leave the strike, reach, and threat history for trial. Such a ruling respects Rule 56, provides a reviewable legal explanation, and avoids treating an authentic but incomplete recording as either side's conclusive witness.

Respectfully submitted,

Fictional Counsel for Officer Nolan Rusk